

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
MARCH 18, 2026
8:30 a.m.

8. TONI MORLEY V. VICTOR GUTIERREZ

25FL1225

This matter is before the court on the Request for Order (RFO) filed by the Respondent on February 03, 2026, to modify Child and Spousal Support retroactive to the date of filing (February 05, 2026) after the court partially granted the Petitioner's RFO (filed December 18, 2025) on January 28, 2026.

As outlined in the Findings and Order After Hearing (FOAH) filed January 30, 2026, the court ordered Respondent to pay Child Support to the Petitioner in the amount of \$1,064.00 and Spousal Support to the Petitioner in the amount of \$242.00 beginning January 01, 2026, and the first of each month thereafter until further order of the court. The court also ordered the Respondent to pay the Petitioner \$446.88 Child Support and \$101.64 Spousal Support for the month of December 2025 (42 percent of the monthly support amounts).

Proof of service filed February 27, 2026, shows that Respondent's instant RFO, as well as Respondent's Income & Expense Declaration (I&E), also filed February 05, 2026, were served upon the Petitioner via mail on February 06, 2026.

On March 03, 2026, the Petitioner filed a Responsive Declaration, a copy of which was served upon the Respondent that same day, according to the proof of service, also filed March 03, 2026.

On March 10, 2026, the Department of Child Support Services (DCSS) filed its Responsive Declaration to the instant RFO, a copy of which was served upon both parties via mail on March 12, 2026, according to the proof of service filed March 13, 2026.

In support of the RFO, Respondent claims that: (1) he actually earns approximately \$4,641.083 [sic] per month;³ (2) he also has monthly health insurance costs of \$685.42; and (3) the parties actually share 50/50 custody of their son, AG (age 9).⁴

Petitioner's Responsive Declaration opposes the instant RFO claiming there has been no change in circumstances since the court's order dated January 28, 2026, that would warrant modification of child or spousal support.

³ The FOAH was based on a finding that the Respondent earned a monthly average of \$6,000.00. This evidence was presented in the Petitioner's I&E submitted concurrently with her RFO on December 18, 2025. As noted in the court's tentative ruling issued January 27, 2026, the court did not consider Respondent's I&E, filed January 26, 2026, because it was not timely served upon the Petitioner (proof of service shows that Respondent's I&E was personally served upon Petitioner on January 23, 2026, five days before the hearing; the deadline for service of Respondent's I&E was January 14, 2026 – nine court days before the hearing (Code Civ. Proc., § 1005, subd. (b)).)

⁴ The FOAH was based on a finding that Respondent's custody share of AG is 14 percent; and Petitioner's custody share of AG is 86 percent. Evidence of the parties' custody share was presented in Petitioner's RFO papers filed December 18, 2025.

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The court finds that Respondent's claim that he actually makes a lesser amount than the court used to calculate child and spousal support in the FOAH is not a change of circumstances that would allow the court to modify the FOAH, which was entered less than three months ago.

However, the court notes that the parties had no custody/visitation orders as of the hearing held on January 28, 2026, which yielded the FOAH entered January 30, 2026. Therefore, the FOAH was based upon a finding that Respondent's custody share of AG is 14 percent, as claimed in Petitioner's I&E filed December 18, 2025.

The Petitioner's RFO filed January 29, 2026, prompted the court to refer the parties to CCRC, which yielded a stipulation and order, which was entered by the court on February 20, 2026. The current custody order is as follows: "Father's parenting time shall be on Thursdays and Fridays from 2:30 p.m. (school pick-up) to 10:00 p.m. ... and Saturday from when Father gets off work (3:30 p.m.) to the time he is ready for drop off, or, if Father is off work all day." Additionally, the parties have a holiday schedule, which provides additional parenting time for the Respondent.

Based upon the current custody order, the court finds that the Respondent's custody share is approximately 16 percent. Further, the court finds this custody share to be a change in circumstance from when the FOAH was issued on January 30, 2026.

In re-calculating child and spousal support, the court will use the information provided by the Respondent in his I&E filed February 05, 2026, which is properly before the court. Respondent's I&E indicates he earns approximately \$4,641.00 per month⁵ and spends \$759.00 on health insurance per month.⁶

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⁵ Attached to Respondent's I&E is a copy of his 2025 W-2, which shows he earned a total gross amount of \$55,693.52. Thus, Respondent's gross monthly income is \$4,461.00, rounded down ($\$55,693.52 / 12 \text{ months} = \$4,641.13$).

⁶ Attached to Respondent's I&E is a copy of his paystub covering the 14-day period of January 03, 2026, through January 16, 2026. Said paystub shows total healthcare expenses of \$342.71 (\$312.06 for medical; \$18.64 for dental; and \$12.01 for vision). Therefore, Respondent's total monthly healthcare expenses amount to \$759.00, rounded up from \$758.86.

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As shown in the attached XSpouse calculation printout, Respondent is ordered to pay Child Support to the Petitioner in the amount of \$556.00 beginning March 01, 2026, and the first of each month thereafter until further order of the court. Although the attached XSpouse calculation printout would show \$69.00 of spousal support payable by the Petitioner to the Respondent, the court declines to impose spousal support and sets the amount of spousal support at zero. The court orders the Respondent to pay \$517.08 Child Support for the month of February 2026 (93 percent of the monthly support amount).

TENTATIVE RULING #8: THE RFO IS GRANTED IN PART. THE RESPONDENT IS ORDERED TO PAY CHILD SUPPORT TO THE PETITIONER IN THE AMOUNT OF \$623.00 BEGINNING MARCH 01, 2026, AND THE FIRST OF EACH MONTH THEREAFTER UNTIL FURTHER ORDER OF THE COURT. THE COURT AWARDS ZERO SPOUSAL SUPPORT. THE COURT ORDERS THE RESPONDENT TO PAY THE PETITIONER \$535.78 CHILD SUPPORT FOR THE MONTH OF FEBRUARY 2026 (86 PERCENT OF THE MONTHLY SUPPORT AMOUNT).

THE COURT DIRECTS DCSS TO PREPARE AND SUBMIT FOR THE COURT'S SIGNATURE A FINDINGS AND ORDER AFTER HEARING (FOAH).

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

Fixed Shares	Father	Mother	Monthly figures		Cash Flow	Guideline	Proposed
#of children	0	1	2026				
% time with NCP	16.00 %	0.00 %	GUIDELINE		Comb. net spendable	6659	6685
Filing status	SINGLE	HH/MLA	Nets(adjusted)		Percent change	0%	0%
# exemptions	1 *	2 *	Support		Father		
Wages+salary	4641	4000	Father	2980	Payment cost/benefit	-492	-391
Self-employed income	0	0	Mother	3678	Net spendable income	2493	2594
Other taxable income	0	0	Total	6659	Change from guideline	0	101
TANF+CS received	0	0	Support		% of combined spendable	37%	39%
Other nontaxable income	0	0	Addons	0	% of saving over guideline	0%	391%
New spouse income	0	0	Guideln CS	-556	Total taxes	901	665
401(k) employee contrib	0	0	Alameda SS	69	Dep. exemption value	0	0
Adjustments to income	0	0	Total	-488	# withholding allowances	0	0
SS paid prev marriage	0	0	-		Net wage paycheck	3619	3619
CS paid prev marriage	0	0			Mother		
Health insurance	759	0			Payment cost/benefit	488	412
Other medical expense	0	0			Net spendable income	4166	4091
Property tax expense	0	0			Change from guideline	0	-75
Ded interest expense	0	0	Proposed		% of combined spendable	63%	61%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	-291%
Misc tax deductions	0	0	CS	-623	Total taxes	322	532
Qual bus income ded	0	0	SS	0	Dep. exemption value	0	0
Required union dues	0	0	Total	-623	# withholding allowances	0	0
Mandatory retirement	0	0	Saving	26	Net wage paycheck	3291	3291
Hardship deduction	0 *	0	Releases	1			
Other GDL deductions	0	0	Released to Father				
Child care expenses	0	0					

Father pays Guideline CS, Proposed CS

Mother pays Guideline SS

FC 4055 checking: ON

Per Child Information									
Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor	
All children	15 - 85	0	0	0	Father	556	Father	556	Father
	16 - 84	0	0	0	Father	556	Father	556	Father